LAND SALES CONTRACT

The undersigned Purchaser(s) Karen S. Leopard and Paul H. Leopard hereby agree to purchase and the undersigned Seller(s) DAVID MICHAEL PIERSON and DIANNE MARIE PIERSON hereby agree to sell and convey the following described real estate, located in Madison County, State of AL together with all improvements, landscaping, fixtures, and appurtenances, and on the terms and conditions described in Additional Provisions. If any personal items remain with the property, they are left "as is" and at no value to the property.

Address 0 Rock Spring Road City Owens Cross Roads County Madison State AL Zip 35763

Lot 24,25 Block _____ Subdivision Metes and Bounds Addition _____

Legal Description: Parcels 23-07-25-0-000-024.000 and 23-07-25-0-000-025.000

☐ **Financed Sale**: This contract is contingent upon Purchaser obtaining loan approval (excluding any financed closing costs) in the amount stated in Paragraph 1* Purchaser agrees to apply for financing within n/a working days and to make a diligent and good-faith effort to obtain approval. Within n/a working days after the Confirmation Date, Purchaser shall provide to Seller or Seller's representative a conditional commitment letter.

☑ **Cash Sale:** Purchaser to deliver proof of funds to Seller within 2 day(s) of the Confirmation Date. Payment of the balance due at closing of the property shall be by cashier's check or certified funds, or by wire transfer. Wire transfers shall be sent to the closing agent's account at least 24 hours prior to closing. No actual cash or personal checks will be accepted unless nominal in amount and specifically approved by the closing agent.

1. TOTAL PURCHASE PRICE shall be…… $ 220,000.00

Earnest money held by Selling Company (working with Purchaser) or Keller Williams Realty, herein called the "Holder" $ 2,200.00

*Financed amount …… **$** 0.00

Balance of down payment due from Purchaser at closing (wire transfer or certified funds) …… **$** 217,800.00

2.**SETTLEMENT CHARGES:**

(a) ☐ **BUYER BROKER COMPENSATION** (Optional): In consideration of the purchase price being offered, the purchaser requests the seller to pay for the services provided by the Buyer Broker in assisting with the consummation of this Agreement and the other terms of this Purchase Agreement, Seller agrees to pay to Buyer's Broker 3% of the gross sales price or $n/a (both 0 if left blank), which is due and payable at closing. The Closing Agent/Attorney is directed to disburse these funds at closing to the Buyer's Broker from the Seller's proceeds from the sale of Property. <u>If a Seller Concession is made available, the Buyer shall determine which expense(s) to apply the Seller Concession toward.</u>

(b) **SETTLEMENT CHARGES:** Purchaser's Settlement Charges (sometimes called "Closing Costs") include all fees relating to mortgage financing, including but not limited to settlement charges, attorney's fees, title search fees, Purchaser's half of title insurance, recording fees, mortgage taxes, deed taxes, loan closing costs, prepaid items, escrows, loan discount fees, and funding fees, PMI, MIP, and VA funding fees, and Purchaser's Broker compensation. Purchaser's Settlement Charges are to be paid by Purchaser(s) unless herein excepted. Seller agrees to pay Purchaser a concession at closing in the amount of up to $n/a (0 if left blank), which amount includes what Purchaser is not allowed to pay under FHA/VA/Conventional requirements but excludes direct seller costs (i.e., Deed, Seller's half of title insurance, payoff expenses, etc.). Seller(s) obligation to pay or reimburse Purchaser(s) for any of Purchaser's Settlement Charges is contingent upon transfer of deed. TO BE COMPLETED BY BUYER: The Seller Concession, if available, is ☐ is not ☑ to be credited toward buyer broker compensation. If yes, indicate the amount or rate that will be contributed from the Seller Concession toward the Buyer's Broker's compensation: n/a.

(c) **PRORATED EXPENSES:** Ad valorem taxes, association fees or dues, other fees or dues, and any rents being collected from existing tenants on the Property will be prorated between Buyer and Seller at the time of closing. If transferable, existing leases will be transferred and assigned to Buyer at closing. Taxes are prorated based upon current information furnished by the Tax Assessor's Office as of the date of closing, unless otherwise agreed to by the Parties. Any increase or decrease in taxes when taxes are due will be Buyer's responsibility.

(d) **CLOSING AGENT/ATTORNEY**: The Parties agree that the closing will take place at: Foundation Title & Escrow/LLT.

(e) **SURVEY: It is recommended that whenever title is passed a new survey be obtained which meets the current standards of the Alabama Society of Professional Land Surveyors. If lender or attorney requires a survey the cost of such is considered a settlement charge.**

(f) **CONVEYANCE:** Seller(s) will convey to Purchaser(s) a General Warranty deed ensuring a good and merchantable title free from any and all encumbrances except current ad valorem taxes, recorded restrictions, easements of record, applicable zoning restrictions, any liens or encumbrances assumed or incurred in this transaction and such state of facts as would be disclosed by an accurate survey of the property.

(g) **TITLE INSURANCE:** An enhanced owner's title insurance policy (enhanced" policy if property qualifies) and binder will be furnished at closing as part of this contract. The premium for the owner's /lender's title policy, the simultaneous issue fee, and binder fee, will be divided equally between the Seller and Purchaser even if mortgagee is Seller.

(h) **CLOSING AND POSSESSION:** The sale shall be closed, and the deed delivered on or before 11/18/2025, except that Seller shall have a reasonable time within which to perfect title or cure defects in the title to said property. Possession is to be given Upon Closing. **NOTE:** If Purchaser is given possession prior to closing, or if Seller is to remain in the property after closing, it is recommended that the parties enter into an ***Occupancy Agreement*** **or** ***Agreement for Retention of Possession***

3. AGENCY DISCLOSURE:

The Listing Licensee is ERA King RE - Northeast AL

☑ An agent of the Seller.
☐ A dual agent.
☐ Assisting the Seller as a Transaction Facilitator.

The Selling Licensee is: Keller Williams Realty

☑ An agent of the Purchaser
☐ A dual agent.
☐ Assisting the Purchaser as a Transaction Facilitator.

Receipt of the Real Estate Brokerage Services Disclosure form is acknowledged.

→ **Purchaser(s) initials** ____ ____ **Seller(s) initials** ____ ____

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4.DISCLAIMER: Seller(s) and Purchaser(s) agree that they have not relied upon any advice or representations of any real estate licensee involved in this sale relative to (a) the legal or tax consequences of this contract and the sale, purchase, or ownership of the property, (b) the structural condition of any improvements (c) the age and square footage of any improvements, and the size or area of the property, (d) the availability of utilities or sewer service, (e) the character of the neighborhood, (f) the investment or resale value of the property, (g) any other matter affecting their willingness to sell or purchase the property on the terms and price herein set forth. Seller(s) and Purchaser(s) acknowledge that if such matters are of concern to them in the decision to sell or purchase the property, they have sought and obtained independent advice relative thereto.

→ **Purchaser(s) initials** _____ _____ **Seller(s) initials** _____ _____

5.**ENVIRONMENTAL CONDITION*****:** *Seller(s) and Purchaser(s) agree that* ***the Listing Company*** *(a) has made no representations or warranties as to the physical condition of the property and/or improvements, if any, (b) is not familiar with the environmental condition of the property and has made no representation or warranty (c) that the property is or is not free from the presence of hazardous or toxic substances, lead based paint, radon gas, underground storage tanks, landfills, cemeteries, burial grounds, flood zones, floodways, wetlands, caves, sinkholes, landslide areas, or any salient features or other environmental condition or hazard. No warranty is made regarding suitability of the real estate for any type of septic systems. Seller and Purchaser acknowledge that if such matters are of concern to them that they have obtained and sought out independent advice relative thereto.*

6.**INSPECTIONS*****:** *Purchaser* ☑ ***Does*** ☐ ***Does Not*** *require, as a contingency of this contract, a due diligence period of* 10 *working days to satisfy themselves of the suitability of the Property (percolation, zoning, utilities availability, etc.). Time is of the essence regarding this provision.*

*7.***FINANCING***: If financing is used, the Purchaser acknowledges that any appraisal required by the lender is used by the lender to determine the maximum loan amount and does not warrant the value or condition of the property.*

*8.***PRORATION:** All taxes, any association dues/fees and rents will be prorated as of the consummation of the sale. The tax proration herein called for will be based upon information obtained from the Tax Assessor or Tax Collector's office. Any changes in such assessment after closing will be adjusted accordingly between Seller and Purchaser

9.**SELLER WARRANTS** that Seller has not received from any lawful authority notification regarding any assessments, pending public improvements, repairs, replacements or alterations to the property that have not been satisfactorily made.

10.**DEFAULT:** Should either the Seller or Purchaser fail to carry out the terms of this contract in accordance with all its provisions, an aggrieved party shall have the option to do one of the following:

(a) File a proceeding in a Court of competent jurisdiction provided (1) the proceedings are non-jury and THE RIGHT TO TRIAL BY JURY IS WAIVED, (2) the amount in controversy (excluding funds held as earnest money) does not exceed $6,000.00 and (3) no licensed real estate professional is a party, except as a stake holder of earnest money; OR,

(b) Reaffirm the contract and proceed through binding arbitration under paragraph 12 for the recovery of damages and/or for specific performance. The damages in either instance may include any cost(s) incurred by the non-breaching party including reasonable attorney's fees.

11.**TRUST ACCOUNT:** Seller and Purchaser hereby direct the Selling Company (working with Purchaser and herein referred to as Holder) to deposit the earnest money in Holder's escrow account pending fulfillment of this contract. Earnest money shall be deposited within two banking days after the confirmation date. Proof of earnest money will be furnished to the Listing Company upon receipt. It is understood that the Holder is, (a) not a party to this contract and does not assume any liability for performance or non-performance of any signatory, (b) must require from all signatories a written release of liability of the Holder which authorizes the release of the earnest money. In the event a dispute arises between the parties to this contract as to which shall be entitled to said earnest money, the Holder may, in its sole discretion, interplead said earnest money into the proper court, and in so doing shall be entitled to deduct from the earnest money for court costs, attorney's fee, and other expenses relating to the interpleader. The prevailing party in any interpleader action shall be entitled to collect from the other party the court costs, attorney's fees and other expenses of the interpleader which shall be paid to the prevailing party. In the event any Earnest Money check is not honored, for any reason, by the bank upon which it is drawn, Holder shall promptly notify Purchaser and Seller. Purchaser shall have two (2) working days after notice to deliver good funds to Holder. In the event Purchaser does not timely deliver good funds within two (2) working days, Purchaser is in default and the Seller may cancel the contract by notice to the Purchaser. In any proceedings under this paragraph, the right to trial by jury is waived.

12.**ALTERNATIVE DISPUTE RESOLUTION AGREEMENT BY BINDING ARBITRATION:** In connection with the purchase and sale of the above described property, except for those disputes described in Paragraph 11 Purchaser and Seller mutually covenant, stipulate and agree in connection with the resolution of any dispute or controversy arising out of or relating to this agreement or concerning the within described property, or the breach, termination, or validity thereof, as follows: That the transaction contemplated in this agreement directly involves interstate commerce, and said transaction has been and will continue to be regulated by the laws of the United States of America; and, that the contract(s) entered into by the parties concerning this property evidence transactions involving and affecting commerce. The undersigned agrees that all disputes not barred by applicable statutes of limitations or otherwise barred by law, resulting from or arising out of this agreement; that included herein in matters to be arbitrated are equitable claims and remedies, including specific performance and rescission; that Purchaser and Seller agree to submit such dispute(s) to BINDING ARBITRATION, pursuant to the provisions of 9 U.S.C. Section 1, et seq and according to the Commercial Rules of the American Arbitration Association then existing in the County where the property being sold is located, and shall be decided by an arbitrator recognized by the Alabama Center for Dispute Resolution and pursuant to the rules of American Arbitration Association or, if agreed by both parties, some other recognized body and pursuant to the rules of American Arbitration Association. The prepaid arbitration filing fees and all other prepaid costs of the arbitration proceeding shall be paid by the party seeking to invoke arbitration, with the assignment of those costs to be divided between the parties as the arbitrator sees fit in setting the Arbitration Award. Damages may include reasonable attorney's fees. It is hereby agreed that it is the intent of the parties that the Arbitrator's Award is to be final and binding and judgment upon the award rendered by the arbitration may be entered in any court having jurisdiction thereof. This alternative dispute resolution agreement shall specifically exclude those disputes provided for in paragraph 11 and shall further specifically exclude those disputes as defined in paragraph 10(a); however, it is mutually agreed, covenanted, and stipulated that the right to a trial by jury is hereby waived. EXCEPT AS SPECIFICALLY PROVIDED HEREIN, THIS ARBITRATION SHALL BE IN LIEU OF ANY CIVIL LITIGATION IN ANY COURT, AND IN LIEU OF ANY TRIAL BY JURY.

13.**TERMINOLOGY:** For the purposes of this contract, the term working day(s) used throughout this Agreement shall be deemed to be weekdays (Monday-Friday) ending at 11:59 p.m. local time (at the location of the Premises) unless otherwise specified in this Agreement. In the event a performance deadline occurs on a Saturday, Sunday or holiday, as defined herein, the performance deadline shall be extended to the next following

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working day. In calculating any time period under this Agreement, the commencement day shall be the day following the initial date (e.g. Confirmation Date). The following days shall be recognized as holidays: New Years Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day and Christmas Day.

14. **ELECTRONIC SIGNATURES**: Electronically transmitted or faxed documents with signatures shall serve as originals and be binding on all parties.
15. **ENTIRE AGREEMENT:** This contract constitutes the entire agreement between Seller and Purchaser regarding the property and supersedes all prior discussions, negotiations and agreements between Seller and Purchaser whether oral or written. Neither Seller, Purchaser, Broker, nor any licensee, shall be bound by any understanding, agreement, promise, or representation concerning the property, expressed or implied, not specified herein. All terms, conditions, and warranties not performed at the time of delivery of deed shall survive such delivery.

ADDITIONAL PROVISIONS:

--Land must appraise for purchase price or greater.
--Seller asserts that this property is in good standing with any mortgage(s) and is not in a short sale position.
--Buyer instructs their Buyer's Agent to include that Seller to pay 3% to the Buyer's Brokerage
--Property shall pass a perc test

We the Purchaser and Seller grant to the closing agent/attorney/lender, permission to distribute the Non-Public Private Information (NPPI) Closing Disclosure to the real estate agents and brokers noted on this contract, at the same time that it is distributed to us.

→ **Purchaser(s) initials** _____ _____ **Seller(s) initials** _____ _____

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PURCHASER **DATE**	**WITNESS** **DATE**
PURCHASER **DATE**	**WITNESS** **DATE**
PURCHASER **DATE**	**WITNESS** **DATE**

Seller Hereby: (Initial *ONE*)

_____ _____ **ACCEPTS** – this offer. **Do not initial here unless offer is being accepted! **

_____ _____ **REJECTS –** this offer and makes no counter offer.

_____ _____ **COUNTERS –** separate Counter Offer form is attached. ☐ **Yes** ☐ **No**

1. The Seller reserves the right to accept any other Offer prior to Purchaser's written acceptance of this Counter-Offer. Acceptance shall not be effective until personally received and acknowledged by Jacqueline Smith _____ (Listing Agent) as evidenced by signing the Confirmation date below.
2. This Counter-Offer shall expire unless a signed copy of acceptance is delivered to the person(s) making this Counter Offer (or their agent) by _____ ☐ a.m. ☐ p.m. on _____(date).
3. Upon acceptance by both parties, as herein specified, this Counter-Offer, if any, together with the offer of the Purchaser, and any addendum, shall compose the entire agreement between the parties hereto.

SELLER **DATE**	**WITNESS** **DATE**
SELLER **DATE**	**WITNESS** **DATE**
SELLER **DATE**	**WITNESS** **DATE**

Confirmation Date: The listing agent confirms that the contract was, accepted and delivered to all parties (and/or their representatives) either in writing or electronically and the date to begin contract performance is:

Date:_____by_____

Confirmation Date **Listing Agent Signature**

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AGENT/BROKERAGE INFORMATION

LISTING SALESPERSON
Jacqueline Smith

EMAIL
jackiealrealestate@gmail.com

PHONE
256-783-9686

MLS ID
SJ10453

AL LICENSE #
120979

LISTING BROKERAGE
ERA King RE - Northeast AL

ADDRESS
209 So. Market Street, Ste 104 Scottsboro, AL 35768

MLS ID
218900

AL LICENSE #

SELLING SALESPERSON
Jason Terry

EMAIL
jason.terry@kw.com

PHONE
256-990-0319

MLS ID
TJ12645

AL LICENSE #
145392

SELLING BROKERAGE
Keller Williams Realty

ADDRESS
809 Shoney Drive STE 108 Huntsville AL 35801

MLS ID
81000

AL LICENSE #
74707

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